REPUBLIKA HRVATSKA
MINISTARSTVO GOSPODARSTVA
I ODRŽIVOG RAZVOJA
10000 Zagreb, Radnička cesta 80
Tel: 01/3717 111 faks: 01/3717 149

Uprava za procjenu utjecaja na okoliš i
održivo gospodarenje otpadom

Sektor za održivo gospodarenje otpadom

Služba za dozvole i prekogranični promet otpadom

KLASA: UP/I 351-02/21-07/143
URBROJ: 517-05-2-1-21-4
Zagreb, 16. srpnja 2021.

Ministarstvo gospodarstva i održivog razvoja, Uprava za procjenu utjecaja na okoliš i održivo gospodarenje otpadom, Sektor za održivo gospodarenje otpadom, Služba za dozvole i prekogranični promet otpadom, na temelju članka 123. Zakona o održivom gospodarenju otpadom ("Narodne novine", br. 94/13, 73/17, 14/19, 98/19) i članka 9. stavka 1. Uredbe (EZ) br. 1013/2006 Europskog Parlamenta i Vijeća od 14. lipnja 2006. o pošiljkama otpada (SL L 190, 12.7.2006.), povodom zahtjeva trgovačkog društva Thermo Team Alternativbrennstoffverwertungs GmbH, Hans-Roth-Straße 1, AT-8073 Feldkirchen, bei Graz, Austrija, za isporuku otpada koji podliježe notifikacijskom postupku u Republiku Hrvatsku, donosi

O D O B R E NJ E

1. Odobrava se trgovačkom društvu Thermo Team Alternativbrennstoffverwertungs GmbH, Hans-Roth-Straße 1, AT-8073 Feldkirchen, bei Graz, Austrija, isporuka otpada koji podliježe notifikacijskom postupku u Republiku Hrvatsku, trgovačkom društvu HOLCIM d.o.o., Koromačno 7 B, 52222 Koromačno, sukladno sljedećim podacima iz Notifikacije br. **AT 036314** koja je sastavni dio ovog Odobrenja.

Količina otpada:	8000 tona
Naziv otpada u Republici Hrvatskoj:	gorivi otpad (gorivo dobiveno iz otpada)
Ključni broj otpada (EZ lista otpada):	19 12 10
Dodatak VIII Baselske konvencije (ili IX ako je primjenjivo)	-
OECD oznaka	nepopisan
Y - oznaka	Y 18
H - oznaka:	-

Pošiljatelj otpada:	Thermo Team Alternativbrennstoffverwertungs GmbH, Hans-Roth-Straße 1, AT-8073 Feldkirchen, bei Graz, Austrija
Proizvođač otpada:	Thermo Team Alternativbrennstoffverwertungs GmbH, Retznei 34, AT-8461 Ehrenhausen an der Weinstraße, Austrija
Primatelj otpada:	HOLCIM d.o.o., Koromačno 7 B, 52222 Koromačno
Postrojenje za oporabu otpada:	HOLCIM d.o.o., Koromačno 7 B, 52222 Koromačno
Postupak oporabe:	R1
Vrsta prijevoza:	Cestovni
Granični prijelaz:	Rupa/Macelj

2. Pravo iz točke 1. ovog Odobrenja daje se za najviše 450 pošiljaka predmetnog otpada u razdoblju od 1. kolovoza 2021. godine do 31. srpnja 2022. godine.
3. Tri dana prije slanja otpada, pošiljatelj je dužan o tome obavijestiti ovo Ministarstvo na adresu elektroničke pošte notification@mingor.hr i ostala nadležna tijela uključena u predmetni prekogranični promet otpada te primatelja pošiljke, na način da im dostavi preslike popunjenog i potpisanog Dokumenta o prometu.
4. Svaka pošiljka otpada mora biti popraćena ovim Odobrenjem, obrascem Obavijesti o prekograničnom prometu (notifikacija) br. AT 036314 i pripadajućim Dokumentom o prometu na kojem je naveden redni broj pošiljke.
5. Primatelj otpada, u roku od tri dana od preuzimanja, dužan je potvrditi primitak pošiljke otpada na ovjerenom Dokumentu o prometu, čiju će presliku dostaviti pošiljatelju otpada i Ministarstvu, Radnička cesta 80, HR-10000 Zagreb, na adresu elektroničke pošte movement@mingor.hr.
6. Primatelj otpada dužan je u najkraćem roku, ali najkasnije 30 dana po završetku oporabe i najduže do jedne kalendarske godine po primitku otpada, dostaviti ovom Ministarstvu i pošiljatelju potvrdu kojom pod vlastitom odgovornošću potvrđuje da je oporaba završena. Ova potvrda daje se u Dokumentu o prometu ili mu se prilaže.
7. U slučaju ako iz bilo kojeg razloga oporaba predmetnog otpada bude onemogućena, primatelj je dužan o tome odmah obavijestiti ovo Ministarstvo i pošiljatelja otpada koji će obustaviti isporuku.
8. Prekogranični promet otpadom koji podliježe notifikacijskom postupku ne može započeti bez pristanka svih zainteresiranih država.
9. Ovo odobrenje nije važeće ako financijsko jamstvo ili ekvivalentno osiguranje nije primjenjivo najkasnije do početka otpreme pošiljke iz obavijesti, sukladno zahtjevu iz članka 6. stavka 3.

Uredbe (EZ) br. 1013/2006, a pošiljatelj je dužan presliku istog dostaviti ovom nadležnom tijelu čim ono bude izdano.

O B R A Z L O Ž E N J E

Nadležno tijelo Republike Austrije, Bundesministerium für Klimaschutz, Umwelt, Energie, Mobilität, Innovation und Technologie je u ime trgovačkog društva Thermo Team Alternativbrennstoffverwertungs GmbH, Hans-Roth-Straße 1, AT-8073 Feldkirchen, bei Graz, Austrija (u daljnjem tekstu: stranka), 4. lipnja 2021. godine podnijelo zahtjev za izdavanje odobrenja za isporuku otpada koji podliježe notifikacijskom postupku: 8 000 tona otpada ključnog broja 19 12 10- gorivi otpad (gorivo dobiveno iz otpada), nepopisan prema Prilozima III, IIIA, IIIB i IV Uredbe (EZ) br. 1013/2006, iz Austrije u Republiku Hrvatsku trgovačkom društvu HOLCIM d.o.o., Koromačno 7 B, 52222 Koromačno (u daljnjem tekstu: oporabitelj), radi oporabe postupkom R1.

Zahtjevu je priloženo sljedeće:

- ispunjeni obrasci iz Priloga I.A i Priloga I.B Uredbe (EZ-a) br. 1013/2006;
- preslika ugovora između podnositelja obavijesti i primatelja otpada sukladno članku 5. Uredbe br. (EZ-a) br. 1013/2006;
- informacije o primatelju otpada (rješenje o objedinjenim uvjetima zaštite okoliša, dozvola za gospodarenje otpadom za primatelja otpada, rješenje o reviziji dozvole),
- opis tehnološkog postupka oporabitelja;
- odgovarajuća polica osiguranja ili jamstvo banke sukladno članku 6. Uredbe (EZ-a) br. 1013/2006 u iznosu dovoljnom za pokriće svih planiranih pošiljki sukladno obavijesti;
- popis prijevoznika sa odgovarajućom policom osiguranja ili jamstvom banke od odgovornosti za štetu prouzročenu trećim osobama;
- porijeklo otpada;
- predviđena ruta puta;
- kemijska analiza otpada.

Nakon što je stranci dostavljen zaključak o dopuni (URBROJ: 517-05-2-1-21-2), dostavljen je opis tehnološkog procesa nastanka otpada.

U svom zahtjevu stranka je dostavila financijsko jamstvo, izdano od osiguravajućeg društva HDI, sukladno članku 6. Uredbe (EZ-a) broj 1013/2006 na iznos od 520.000,00 EUR.

Dozvola za gospodarenje otpadom oporabitelja, KLASA: 351-02/13-11/121, URBROJ: 517-06-3-1-1-15-13 od 13. veljače 2015. godine, izdana od strane ovog nadležnog tijela obuhvaća oporabu otpada ključnog broja 19 12 10 postupkom R1, u godišnjoj količini od 30 000 tona/ godišnje te količina otpada planirana za isporuku ne premašuje kapacitet postrojenja. Tehnološki postupak oporabe otpada opisan je u elaboratu koji prileži dozvoli.

Tijekom postupka utvrđeno je da stranka ispunjava propisane uvjete sukladno članku 124. Zakona o održivom gospodarenju otpadom i odredbama Uredbe (EZ-a) broj 1013/2006 o pošiljkama otpada, stoga je odlučeno kao u izreci ovog Odobrenja.

U postupku je propisno naplaćena upravna pristojba za ovo odobrenje od strane trgovačkog društva izvoznika u iznosu od 3.500,00 kn po Tbr. 90. Uredbe o tarifi upravnih pristojbi ("Narodne novine", br. 8/17, 37/17, 129/17,18/19, 97/19, 128/19).

Uputa o pravnom lijeku:

Ovo odobrenje je izvršno u upravnom postupku i protiv njega se ne može izjaviti žalba, ali se može pokrenuti upravni spor. Upravni spor pokreće se tužbom pred mjesno nadležnim upravnim sudom u roku 30 dana od dana dostave ovog rješenja. Tužba se predaje nadležnom upravnom sudu neposredno u pisanom obliku, usmeno na zapisnik ili se šalje poštom, odnosno dostavlja elektronički.

VIŠA STRUČNA SAVJETNICA

Vinka Radošević, univ.spec.oecoing., mag.ing.bioproc.

DOSTAVITI:

1. Thermo Team Alternativbrennstoffverwertungs GmbH, Hans-Roth-Straβe 1, AT-8073 Feldkirchen, bei Graz, Austrija, i.pollatschek@saubermacher.at
2. Inšpektorat RS za okolje in prostor, tfs.irsop@gov.si
3. Bundesministerium für Klimaschutz, Umwelt, Energie, Mobilität, Innovation und Technologie, v1@bmk.gv.at
4. HOLCIM d.o.o., alenka.smokovic@lafargeholcim.hr; vesna.sumberac@geocycle.com, vesna.sumberac@holcim.com
5. Ministarstvo financija, Carinska Uprava, pisarnica@carina.hr
6. Zavod za zaštitu okoliša i prirode, pisarnica@haop.hr
7. Državni inspektorat Republike Hrvatske, Sektor za nadzor zaštite okoliša, zaštite prirode i vodopravni nadzor, pisarnica.dirh@dirh.hr
8. U spis predmeta, ovdje

Notification document for transboundary movements/shipments of waste

1. Exporter - notifier Registration No: **9008390026373**
Name: **Thermo Team Alternativbrennstoffverwertungs GmbH**
Address: **Hans-Roth-Straße 1**
AT-8073 Feldkirchen bei Graz
Contact person: **Isabella Pollatschek, Mag. Verena Reiterer**
Tel: **+43 / 664 / 80598 - 5602** Fax: **+43 / 59800 / 1699**
E-mail: **i.pollatschek@saubermacher.at**

2. Importer - consignee Registration No: **9008390963142**
Name: **Holcim (Hrvatska) d.o.o.**
Address: **Koromačno 7b**
HR-52222 Koromačno
Contact person: **Vesna Šumberac**
Tel: **+385 / 52 / 876 - 990** Fax: **+385 / 52 / 876 - 240**
E-mail: **vesna.sumberac@lafargeholcim.com**

8. Intended carrier(s)
Registration No:
Name *(7)*: **see Attachment 1**
Address:
Contact person:
Tel: Fax:
E-mail:
Means of transport *(5)*: **R**

9. Waste generator(s)/producer(s) *(1)(7)(8)*
Registration No: **9008390080443**
Name: **Thermo Team Alternativbrennstoffverwertungs GmbH The**
Address: **Retznei 34**
AT-8461 Ehrenhausen an der Weinstraße
Contact person: **Thomas Lechner**
Tel: **+43 / 59800 / 5201** Fax:
E-mail: **t.lechner@saubermacher.at**
Site and process of generation *(6)*: **Retznei, mechanical sorting**

10. Disposal facility *(2)*: ☐ **or recovery facility** *(2)*: ☒
Registration No: **9008390963142**
Name: **Holcim (Hrvatska) d.o.o.**
Address: **Koromačno 7b**
HR-52222 Koromačno
Contact person: **Alenka Smokovic**
Tel: **+385 / 992 / 101092** Fax: **+385 / 52 / 876 - 240**
E-mail: **alenka.smokovic@lafargeholcim.com**
Actual site of disposal/recovery: **Koromacno Kroatien**

3. Notification No: **AT 036314**
Notification concerning
A. (i) Individual shipment: ☐ (ii) Multiple shipments: ☒
B. (i) Disposal *(1)*: ☐ (ii) Recovery: ☒
C. Pre-consented recovery facility *(2)(3)* Yes ☐ No ☒

4. Total intended number of shipments: **450**

5. Total intended quantity *(4)*:
Tonnes (Mg): **8.000,00**
m³:

6. Intended period of time for shipment(s) *(4)*:
First departure: **01.08.21** Last departure: **31.07.22**

7. Packaging type(s) *(5)*: **8**
Special handling requirements *(6)*: Yes ☐ No ☒

11. Disposal/recovery operation(s) *(2)*:
D-Code / R-Code *(5)*: **R1**
Technology employed *(6)*: **coincineration in the cement-plant**
Reason for export *(1)(6)*:

12. Designation and composition of the waste *(6)*:
brennbare Abfälle (Brennstoffe aus Abfällen)
combustible waste (refuse derived fuel, quality assured)

13. Physical characteristics *(5)*: **2**

14. Waste identification (fill in relevant codes)

(i) Basel Annex VIII (or IX if applicable):	**not listed**
(ii) OECD code (if different from i):	**not listed**
(iii) EC list of wastes:	**19 12 10**
(iv) National code in country of export:	**91108**
(v) National code in country of import:	**191210**
(vi) Other (specify):	**-**
(vii) Y-code:	**Y18**
(viii) H-code *(5)*:	**-**
(ix) UN Class *(5)*:	**-**
(x) UN number:	**-**
(xi) UN shipping name:	**-**
(xii) Customs code(s) (HS):	**-**

REPUBLIKA HRVATSKA MINISTARSTVO GOSPODARSTVA I ODRŽIVOG RAZVOJA

15. (a) Countries/States concerned, (b) code No of competent authorities where applicable, (c) specific points of exit or entry (border crossing or port)

State of export/dispatch	State(s) of transit (entry and exit)						State of import/destination
(a) **AT**	**SI**						**HR**
(b) **AT001**							
(c) **Spielfeld (Autobahn A9)**	**s.Att. 2**	**s.Att. 2**					**Rupa / Gornji Macelj**

16. Customs offices of entry and/or exit and/or export: (European Community)
Entry: Exit: Export:

17. Exporter's - notifier's/generator's - producer's *(1)* **declaration:**
I certify that the information is complete and correct to my best knowledge. I also certify that legally enforceable written contractual obligations have been entered into and that any applicable insurance or other financial guarantee is or shall be in force covering the transboundary movement.

Exporter's/notifier's name: ThermoTeam Alternativbrenn-Stoffverwertungs GmbH (Thomas Lechner) Date: **19.05.21** Signature: Thomas Lech
Generator's/producer's name: Date: Signature:

18. Number of annexes attached: **8**

FOR USE BY COMPETENT AUTHORITIES

19. Acknowledgement from the relevant competent authority of countries of import - destination/transit *(1)* **/ export - dispatch** *(9)*:
Country:
Notification received on:
Acknowledgement sent on:
Name of competent authority:
Stamp and/or signature:

20. Written consent *(1)(8)* **to the movement provided by the competent authority of** *(Country)*: REPUBLIC OF CROATIA
Consent given on: 16.7.2021
Consent valid from: 1.08.2021 until: 31.07.2022.
Specific conditions: No ☒ If Yes, see block 21 *(6)*: ☐
Name of competent authority: MINISTRY OF ECONOMY
Stamp and/or signature: AND

REPUBLIKA HRVATSKA MINISTARSTVO GOSPODARSTVA I ODRŽIVOG RAZVOJA

21. Specific conditions on consenting to the movement or reasons for objecting:
* Enclosed please find consent: CAFS No: 351-02/21-07/143, REGNO: 517-05-1-1-21-4

(1) Required by the Basel Convention
(2) In the case of an R12/R13 or D13-D15 operation, also attach corresponding information on any subsequent R12/R13 or D13-D15 facilities and on the subsequent R1-R11 or D1-D12 facilit(y)ies when required
(3) To be completed for movements within the OECD area and only if B(ii) applies
(4) Attach detailed list if multiple shipments
(5) See list of abbreviations and codes on the next page
(6) Attach details if necessary
(7) Attach list if more than one
(8) If required by national legislation
(9) If applicable under the OECD Decision

electronically submitted

List of abbreviations and codes used in the notification document

DISPOSAL OPERATIONS (block 11)

D1	Deposit into or onto land (e.g. landfill, etc.)
D2	Land treatment (e.g. biodegradation of liquid or sludgy discards in soils, etc.
D3	Deep injection (e.g. injection of pumpable discards into wells, salt domes or naturally occurring repositories, etc.)
D4	Surface impoundment (e.g. placement of liquid or sludge discards into pits, ponds or lagoons, etc.)
D5	Specially engineered landfill (e.g. placement into lined discrete cells which are capped and isolated from one another and the environment, etc.)
D6	Release into a water body except seas/oceans
D7	Release into seas/oceans including sea-bed insertion
D8	Biological treatment not specified elsewhere in this list which results in final compounds or mixtures which are discarded by means of any of the operations in this list
D9	Physico- chemical treatment not specified elsewhere in this list which results in final compounds or mixtures which are discarded by means of any of the operations in this list (e.g. evaporation, drying, calcination, etc.)
D10	Incineration on land
D11	Incineration at sea
D12	Permanent storage (e.g. emplacement of containers in a mine, etc.)
D13	Blending or mixing prior to submission to any of the operations in this list
D14	Repackaging prior to submission to any of the operations in this list
D15	Storage pending any of the operations in this list

RECOVERY OPERATIONS (block 11)

R1	Use as a fuel (other than in direct incineration) or other means to generate energy (Basel/OECD) / use principally as a fuel or other means to generate energy (EU)
R2	Solvent reclamation/regeneration
R3	Recycling/reclamation of organic substances which are not used as solvents
R4	Recycling/reclamation of metals and metal compounds
R5	Recycling/reclamation of other inorganic materials
R6	Regeneration of acids or bases
R7	Recovery of components used for pollution abatement
R8	Recovery of components from catalysts
R9	Used oil re-refining or other reuses of previously used oil
R10	Land treatment resulting in benefit to agriculture or ecological improvement
R11	Uses of residual materials obtained from any of the operations numbered R1 to R10
R12	Exchange of wastes for submission to any of the operations numbered R1 to R11
R13	Accumulation of material intended for any operation in this list.

PACKAGING TYPES (block 7)

1. Drum
2. Wooden barrel
3. Jerrican
4. Box
5. Bag
6. Composite packaging
7. Pressure receptacle
8. Bulk
9. Other (specify)

MEANS OF TRANSPORT (block 8)

R = Road
T = Train/rail
S = Sea
A = Air
W = Inland waterways

PHYSICAL CHARACTERISTICS (block 13)

1. Powdery/powder
2. Solid
3. Viscous/paste
4. Sludgy
5. Liquid
6. Gaseous
7. Other (specify)

H CODE AND UN CLASS (block 14)

UN Class	H code	Characteristics
1	H1	Explosive
3	H3	Flammable liquids
4.1	H4.1	Flammable solids
4.2	H4.2	Substances or wastes liable to spontaneous combustion
4.3	H4.3	Substances or wastes which, in contact with water, emit flammable gases
5.1	H5.1	Oxidising
5.2	H5.2	Organic peroxides
6.1	H6.1	Poisonous (acute)
6.2	H6.2	Infectious substances
8	H8	Corrosives
9	H10	Liberation of toxic gases in contact with air or water
9	H11	Toxc (delayed or chronic)
9	H12	Ecotoxic
9	H13	Capable, by any means, after disposal of yielding another material, e.g. leachate, which possesses any of the characteristics listed above

Further information, in particular related to waste identification (block 14), i.e. on Basel Annexes VIII and IX codes, OECD codes and Y codes, can be found in a Guidance/Instruction Manual available from the OECD and the Secretariat of the Basel Convention.

REPUBLIKA HRVATSKA
MINISTARSTVO GOSPODARSTVA
I ODRŽIVOG RAZVOJA

Route 1

total kilometers: 342 km

leave Retznei on road L675
continue on to Spielfeld/L675
at the roundabout, continue straight on to the A9/E57/E59
border-crossing Spielfeld / Sentilj
road E57/A5 toward Maribor
turn left on road E57/A1 toward Ljubljana
turn right on road H3 toward Ljubljna - sever
go ahead on route E61/A2 toward Rijeka
border crossing Jelsane / Rupa
forward to road A7 toward Pula
turn left on road 500 toward Otok Cres / Labin
turn right on road E751/66
pass Labin

Holcim (Hrvatska) d.o.o.
Koromacno 7b
HR-52222 Koromacno

Route 2
alternative route
in case of unforeseeable circumstances

total kilometers: 361 km

leave Retznei on road L675
continue on to Spielfeld/L675
at the roundabout, continue straight on to the A9/E57/E59
border-crossing Spielfeld / Sentilj
road E59 toward Maribor
road 229 toward Ptuj
pass Ptuj
road E59/A4 toward Zagreb
border crossing Gruskovje / Gornji Macelj
road E59/A2 toward Split/Rijeka
road E59/A1 toward Pula/Rijeka
turn right on road A8 toward Otok Cres/Labin
pass Labin

Holcim (Hrvatska) d.o.o.
Koromacno 7b
HR-52222 Koromacno

Notification document for transboundary movements/shipments of waste

Attachment 1 of Notification No. AT 036314

Field 8. Intended carriers

1. Intended carrier

Registration No:	**9008391209744**
Name:	**Avtoprevoznistvo Aleksander Segula s.p.**
Address:	**Spuhlja 103B**
	SI-2250 Ptuj
Contact person:	**Christian Drosg**
Tel:	**+43 / 3185 / 30645**
Fax:	**+43 / 3185 / 30656**
E-mail:	**drosg.christian@drosg-transporte.at**
Means of transport:	**R**

2. Intended carrier

Registration No:	**9008391900054**
Name:	**Boske Transport, cestni tovorni promet, Robert Kuserbanj s.p.**
Address:	**Stanošina 8b**
	SI-2286 Podlehnik
Contact person:	**Christian Drosg**
Tel:	**+43 / 3185 / 30645**
Fax:	
E-mail:	**christian.drosg@drosg-transporte.at**
Means of transport:	**R**

REPUBLIKA HRVATSKA
MINISTARSTVO GOSPODARSTVA
I ODRŽIVOG RAZVOJA

3. Intended carrier

Registration No:	**9008390565223**
Name:	**Drosg Transport GmbH**
Address:	**Schönaich 45**
	AT-8521 Wettmannstätten
Contact person:	**Herr Christian Drosg**
Tel:	**+43 / 3185 / 30645**
Fax:	**+43 / 3185 / 30656**
E-mail:	**drosg.christian@drosg-transporte.at**
Means of transport:	**R**

4. Intended carrier

Registration No:	**9008391865681**
Name:	**Mansped d.o.o. Kukuljanovo**
Address:	**Kukuljanovo 387**
	HR-51227 Kukuljanovo
Contact person:	**Bogdanic Andrej**
Tel:	**+385 / 51 / 505 - 338**
Fax:	**+385 / 51 / 545 - 400**
E-mail:	**info@mansped.hr**
Means of transport:	**R**

5. Intended carrier

Registration No:	**9008390862247**
Name:	**Tanaj Transport d.o.o.**
Address:	**Markovci 33 E**
	SI-2281 Markovci Pri Ptuju
Contact person:	**Christian Drosg**
Tel:	**+43 / 3185 / 30645**
Fax:	**+43 / 3185 / 30656**
E-mail:	**drosg.christian@drosg-transporte.at**
Means of transport:	**R**

6. Intended carrier

Registration No:	**9008391253976**
Name:	**Zevart Trans d.o.o.**
Address:	**Plesivec 25**
	SI-3320 Velenje
Contact person:	**Christian Drosg**
Tel:	**+43 / 3185 / 30645**
Fax:	**+43 / 3185 / 30656**
E-mail:	**drosg.christian@drosg-transporte.at**
Means of transport:	**R**

Notification document for transboundary movements/shipments of waste

Attachment 2 of Notification No. AT 036314

Field 15. Countries/States concerned

State of transit (entry and exit)

Country: **Slowenien**
Code No of competent authority:
Point of entry: **Sentilj (Avtocesta)**
Point of exit: **Jelsane / Gruskovje**

electronically submitted